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Some artificial dyes could be banned from California schools

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Author: Eduardo Cuevas | Section: News | 529 Words
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California public schools could soon be banned from serving certain artificial dyes in food over concerns about developmental harm in children.

Dubbed a "first-in-the-nation" measure, state lawmakers this week passed Assembly Bill 2316 to prohibit six additives that are permitted by federal regulators to make food more colorful. California's AB 2316, known as the California School Food Safety Act, is now on Gov. Gavin Newsom's desk.

The bill says state research suggests such synthetic dyes can result in hyperactivity and other behavioral problems. Similar previous research prompted the European Union to restrict food coloring. Nearly all of the products that the California bill would ban in schools require warning labels in E.U. products.

The bill would ban commercial dyes of Blue 1, Blue 2, Green 3, Red 40, Yellow 5 and Yellow 6, in public schools in the nation's largest state.

"California has a responsibility to protect our students from chemicals that harm children and interfere with their ability to learn," state Assemblymember Jesse Gabriel, a Democrat who authored the bill, said in a statement. He said that he struggled with Attention Deficit/Hyperactivity Disorder, or ADHD, and he is now a parent.

On Saturday, a spokesperson said Newsom's office didn't comment on pending legislation. The deadline for Newsom to sign or veto legislation is Sept. 30, the spokesperson said.

The nonprofit Environmental Working Group and the California Medical Association, which represents doctors, supported the bill.

The U.S. Food and Drug Administration approvals for the dyes banned under AB 2316 date back decades, the environmental nonprofit said. Those approvals were based on old studies not designed to detect behavioral effects in children, the medical association had said in its support of AB 2316.

The Consumer Brands Association, a dye industry representative, opposed the bill because it overrode existing food safety rules, and the group disputed findings about adverse health effects. John Hewlitt, the association's senior vice president of packaging, sustainability and state affairs, said the bill was "advancing a political agenda."

"The passage of this bill could cost schools and families money, limit choice and access, and create consumer confusion," he said in a statement provided to USA TODAY. "The approach taken by California politicians flies in the face of our science and risk-based process and is not the precedent we should be setting when it comes to feeding our families."

A 2021 state Environmental Protection Agency assessment found American youth diagnosed with ADHD increased in the last 20 years, which prompted the state to look at food dyes. The U.S. Centers for Disease Control and Prevention has similarly tracked increases in ADHD diagnoses in children in recent years.

Focusing on seven food dyes, including those that would be banned under AB 2316, state researchers reviewed prior studies on the effects of these dyes in humans and laboratory animals. Findings indicated they were linked to adverse neurobehavioral outcomes in children, and children varied in sensitivity.

On Friday, an FDA spokesperson told NBC News they had reviewed literature cited in California's legislation. While

saying most children have no "adverse effects" when they eat foods with color additives, the spokesperson reportedly said some evidence suggests certain children may be sensitive.

If signed into law, California's ban would take effect in schools beginning in 2027.

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